

AMENDED IN SENATE JUNE 20, 2024

AMENDED IN SENATE JUNE 19, 2024

AMENDED IN SENATE JUNE 12, 2024

CALIFORNIA LEGISLATURE—2023–24 REGULAR SESSION

Assembly Constitutional Amendment

No. 8

Introduced by Assembly Member Wilson

(Coauthors: Assembly Members Bonta, Bryan, Wendy Carrillo, Connolly, Gipson, Haney, Jackson, Kalra, Low, McCarty, McKinnor, Ortega, Papan, Blanca Rubio, Santiago, Ting, and Weber)

(Coauthors: Senators Bradford, Dodd, Durazo, Skinner, Smallwood-Cuevas, and Wiener)

February 17, 2023

Assembly Constitutional Amendment No. 8—A resolution to propose to the people of the State of California an amendment to the Constitution of the State, by amending Section 6 of Article I thereof, relating to slavery.

LEGISLATIVE COUNSEL’S DIGEST

ACA 8, as amended, Wilson. Slavery.

The California Constitution prohibits slavery and prohibits involuntary servitude, except as punishment to a crime.

This measure would instead prohibit slavery in any form. This measure would prohibit the Department of Corrections and Rehabilitation ~~or any local entity operating a jail facility~~ from ~~punishing~~ *disciplining* any incarcerated person for refusing a work assignment. The measure would also clarify that its provisions do not prohibit the Department of Corrections and Rehabilitation ~~or any local entity operating a jail facility~~

from awarding *credits* to an incarcerated person ~~credit toward their sentence for voluntarily accepting~~ *who voluntarily accepts* a work assignment.

Vote: $\frac{2}{3}$. Appropriation: no. Fiscal committee: yes.
State-mandated local program: no.

1 *WHEREAS, The California Constitution has explicitly allowed*
2 *involuntary servitude as punishment for a crime since 1849, more*
3 *than 15 years before slavery was abolished in the United States;*
4 *and*

5 *WHEREAS, More than 150 years after slavery was abolished,*
6 *correctional institutions continue to rely on the involuntary*
7 *servitude exception in the California Constitution to demand forced*
8 *labor from incarcerated people; and*

9 *WHEREAS, Forced labor has no redeeming qualities and is*
10 *inconsistent with California's respect for human dignity; and*

11 *WHEREAS, It is the intent of the Legislature that no person in*
12 *the State of California, regardless of their circumstance of*
13 *confinement, be subjected to slavery or involuntary servitude in*
14 *the state of California and any place subject to its jurisdiction;*
15 *now, therefore, be it*

16 *Resolved by the Assembly, the Senate concurring, That the*
17 *Legislature of the State of California at its 2023–24 Regular*
18 *Session commencing on the fifth day of December 2022, two-thirds*
19 *of the membership of each house concurring, hereby proposes to*
20 *the people of the State of California, that the Constitution of the*
21 *State be amended as follows:*

22 That Section 6 of Article I thereof is amended to read:

23 SEC. 6. (a) ~~Slavery in any form is and involuntary servitude~~
24 ~~are prohibited.~~

25 (b) ~~The Department of Corrections and Rehabilitation or any~~
26 ~~local entity operating a jail facility shall not punish discipline any~~
27 ~~incarcerated person for refusing a work assignment.~~

28 (c) ~~This section does not~~ *Nothing in this section shall prohibit*
29 ~~the Department of Corrections and Rehabilitation or any local~~
30 ~~entity operating a jail facility~~ *from awarding credits to an*
31 ~~incarcerated person credit toward their sentence for who voluntarily~~
32 ~~accepting accepts~~ *a work assignment.*

- 1 *(d) Amendments made to this section by the measure adding*
- 2 *this subdivision shall become operative on January 1, 2025.*

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